

CHAPTER 283**THE CIVIL PROCEDURE AND
LIMITATION (MISCELLANEOUS
PROVISIONS) ACT****Arrangement of Sections**

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SCHEDULES

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CHAPTER 283

THE CIVIL PROCEDURE AND LIMITATION (MISCELLANEOUS PROVISIONS) ACT

Commencement: 28 April, 1969

An Act to provide for the giving of notice before certain suits are instituted; for the limitation of certain actions; for the protection against actions of persons acting in the execution of public duties and for related matters.

1. Interpretation

- (1) In this Act, unless the context otherwise requires—
“local authority” means a local council within the meaning of the Local Governments Act;
“scheduled corporation” means a corporation mentioned in Schedule 1 to this Act.

(2) For the purposes of this Act, a person shall be deemed to be under a disability while he or she is an infant or suffers from mental illness.

(3) For the purposes of subsection (2), but without prejudice to the generality of that subsection, a person shall be conclusively presumed to be suffering from mental illness while he or she is detained in pursuance of any enactment authorising the detention of persons suffering from mental illness or criminal lunatics.

2. Notice prior to suing

(1) Notwithstanding the provisions of any other written law, no suit shall lie or be instituted against—

- (a) the Government;
- (b) a local authority; or
- (c) a scheduled corporation,

until the expiration of forty-five days after written notice has been delivered to or left at the office of the person specified in Schedule 2 to this Act, stating the name, description and place of residence of the intending plaintiff, the name of

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the court in which it is intended the suit be instituted, the facts constituting the cause of action and when it arose, the relief that will be claimed and, so far as the circumstances admit, the value of the subject matter of the intended suit.

(2) The written notice required by this section shall be in the form set out in Schedule 3 to this Act, and every plaint subsequently filed shall contain a statement that such notice has been delivered or left in accordance with the provisions of this section.

3. Limitation of certain actions

- (1) No action founded on tort shall be brought against—
 - (a) the Government;
 - (b) a local authority; or
 - (c) a scheduled corporation,

after the expiration of two years from the date on which the cause of action arose.

(2) No action founded on contract shall be brought against the Government or against a local authority after the expiration of three years from the date on which the cause of action arose.

4. Actions against public officers

Where any action, prosecution or other proceeding is commenced against any person for any act done in pursuance or execution or intended execution of any Act or other written law, or of any public duty or authority, or in respect of any alleged neglect or default in the execution of any such act or other written law, duty or authority, the action, prosecution or proceeding shall not lie or be instituted unless it is instituted within six months after the act, neglect or default complained of, or in the case of a continuance of injury or damage, within three months after the ceasing of the injury or damage.

5. Extension of limitation period in case of disability

Where on the date when any right of action accrued for which a period of limitation is prescribed by this Act the person to whom it accrued was under a disability, the action may be brought at any time before the expiration of twelve months from the date when the person ceased to be under a disability

or died, whichever event first occurred, notwithstanding that the period of limitation has expired; except that

- (a) this section shall not affect any case where the right of action first accrued to some person, not under a disability, through whom the person under a disability claims;
- (b) when a right of action which has accrued to a person under a disability accrues, on the death of that person while still under a disability, to another person under a disability, no further extension of time shall be allowed by reason of the disability of the second person;
- (c) no action to recover land or money charged on land shall be brought by virtue of this section by any person after the expiration of thirty years from the date on which the right of action accrued to that person or some person through whom he or she claims;
- (d) this section shall not apply to any suit to recover a penalty or forfeiture, or sum by way thereof, by virtue of any enactment, except where the action is brought by an aggrieved party.

6. Postponement of limitation period in case of fraud or mistake

(1) Where, in the case of any action for which a period of limitation is prescribed by this Act, either—

- (a) the action is based upon the fraud of the defendant or his or her agent or of any person through whom he or she claims or his or her agent;
 - (b) the right of action is concealed by the fraud of any such person as is mentioned in paragraph (a); or
 - (c) the action is for relief from the consequence of a mistake,
- the period of limitation shall not begin to run until the plaintiff has discovered the fraud or the mistake, or could with reasonable diligence have discovered it.

(2) Notwithstanding subsection (1), nothing in this section shall enable any action to be brought to recover, or enforce any charge against, or set aside any transaction affecting, any property which—

- (a) in the case of fraud, has been purchased for valuable consideration by a person who was not a party to the fraud and did not at the time of the purchase know or have reason to believe that any fraud had been committed; or
- (b) in the case of mistake, has been purchased for valuable consideration, subsequently to the transaction in which the mistake

was made, by a person who did not know or have reason to believe that the mistake had been made.

7. Power to amend Schedules

The Minister may, by statutory order, amend the Schedules to this Act.

8. Effect of amending Schedule 1

Where the Minister makes a statutory order in the exercise of his or her powers under section 7 in respect of Schedule 1 to this Act, the following provisions shall have effect—

- (a) if an item is added to the Schedule, and immediately before the commencement of the order the time for bringing any proceedings had not already expired under any law relating to limitation of actions then in force, and the bringing of the proceedings is barred by this Act, the proceedings may be instituted before the expiration of twelve months from the commencement of the order; but nothing in this section shall enable any proceedings to be instituted where the time for bringing the proceedings would have expired apart from this Act;
 - (b) if any item is deleted from the Schedule, the deletion shall not enable any action to be brought which was barred by this Act before the making of the statutory order.
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SCHEDULES Schedule

1

Sections 1, 7, 8

Scheduled Corporations

<i>Name of corporation</i>	<i>Act under which established</i>
<i>1. Allied Health Professional Council</i>	<i>Cap. 296</i>
<i>2. Architects Registration Board</i>	<i>Cap. 297</i>
<i>3. Bank of Uganda</i>	<i>Cap. 54</i>
<i>4. Capital Markets Authority</i>	<i>Cap. 64</i>
<i>5. Uganda Civil Aviation Authority</i>	<i>Cap. 348</i>
<i>6. Cotton Development Organisation</i>	<i>Cap. 36</i>
<i>7. Dairy Development Authority</i>	<i>Cap. 67</i>
<i>8. District Land Board</i>	<i>Cap. 236</i>
<i>9. Electoral Commission</i>	<i>Cap. 176</i>
<i>10. Electricity Regulatory Authority (ERA)</i>	<i>Cap. 157</i>
<i>11. Hotel and Tourism Training Institute</i>	<i>Cap. 249</i>
<i>12. Institute of Certified Public Accountants of Uganda</i>	<i>Cap. 294</i>
<i>13. Islamic University of Uganda</i>	<i>Cap. 250</i>
<i>14. Kampala Capital City Authority</i>	<i>Cap. 195</i>
<i>15. Kyambogo University</i>	<i>Cap. 262</i>
<i>16. Law Development Centre</i>	<i>Cap. 251</i>
<i>17. Makerere University</i>	<i>Cap. 262</i>
<i>18. Management Training and Advisory Centre</i>	<i>Cap. 253</i>
<i>19. Mbarara University of Science and Technology</i>	<i>Cap. 262</i>
<i>20. Medical and Dental Practitioners Council</i>	<i>Cap. 300</i>
<i>21. National Agricultural Research Organisation</i>	<i>Cap. 197</i>
<i>22. National Conference (The)</i>	<i>Cap. 275</i>
<i>23. National Children Authority</i>	<i>Cap. 62</i>
<i>24. National Council of Sports</i>	<i>Cap. 151</i>
<i>25. National Drug Authority</i>	<i>Cap. 198</i>
<i>26. National Enterprises Corporation</i>	<i>Cap. 199</i>
<i>27. National Environmental Management Authority</i>	<i>Cap. 181</i>

9714	Cap. 283.]	<i>Civil Procedure and Limitation (Miscellaneous Provisions) Act</i>
28.	National Forestry Authority (NFA)	Cap. 160
29.	National Medical Stores	Cap. 201
30.	National Social Security Fund	Cap. 230
31.	National Women's Council	Cap. 113
32.	National Youth Council	Cap. 114
33.	Nonperforming Assets Recovery Trust	Cap. 76
34.	Nurses and Midwives Council	Cap. 301
35.	Parliamentary Commission	Cap. 272
36.	National Library Board	Cap. 255
37.	Trustees of Nakivubo War Memorial Stadium Trust	Cap. 150
38.	Trustees of the National Cultural Centre	Cap. 153
39.	Uganda AIDS Commission	Cap. 206
40.	Uganda Bureau of Statistics	Cap. 332
41.	Uganda Coffee Development Authority	Cap. 38
42.	Uganda Communications Commission	Cap. 103
43.	Uganda Development Corporation Limited	Cap. 208
44.	Uganda Export Promotion Board	Constitution
45.	Insurance Regulatory Authority	Cap. 191
46.	Uganda Investment Authority (Investment Code)	Cap. 74
47.	Uganda Land Commission	Constitution
48.	Uganda Management Institute	Cap. 262
49.	Uganda National Council for Science and Technology	Cap. 207
50.	Uganda National Roads Authority	Cap. 214
51.	Uganda Registration Services Bureau	Cap. 217
52.	Uganda Revenue Authority	Cap. 218
53.	Uganda Tourist Board	Cap. 82
54.	Uganda Trypanosomiasis Control Council	Cap. 220
55.	Uganda Veterans Assistance Board	Cap. 221
56.	Uganda Wildlife Authority	Cap. 315
57.	Uganda Wildlife Training Institute	Cap. 261

Schedule 2

Sections 2(1), 7

Person at or to Whose Office Notice to be Delivered or Sent

Intended defendant	Person at or to whose office notice to be delivered or sent
The Government	Attorney General
A local administration	Chief administrative officer
A municipal council	Town clerk of the council
A scheduled corporation	Secretary of the corporation

Schedule 3

Sections 2(2), 7

Notice to Intended Defendant*[Under section 2 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act, Cap. 283]*

In the matter of an intended

suit, Between (name) _____, Plaintiff

and

(name) _____, Defendant

Take notice that _____ (name and description of intending plaintiff) of _____ (address) intends to institute a suit against _____ (name and description of intended defendant) in the _____ court at _____ (specify court) by which he/she will seek _____ (state nature of relief that will be sought).

The facts constituting the cause of action, which arose on _____ (date) are as follows (state them briefly, in numbered paragraphs).

The value of the subject matter of the intended suit is _____ (state appropriate value insofar as the case admits).

Dated this _____ day of _____, 20 _____.

(Signature of intending Plaintiff or his or her Advocate)

History: Act 20/1969; S.I. 68/1969; S.I. 28/1978; S.I. 59/1983; S.I. 31/1992; S.I. 12/1993; S.I. 2/1994; S.I. 77/1998; Act 11/2000; Cap. 72 (Revised Edition, 2000) S.I. 49/2002; S.I. 35/2010; S.I. 34/2011; S.I. 42/2012

Cross Reference

Local Governments Act, Cap. 138